

repeal of
 & 35 V. 1908.
 1908.

8. The Lodgers' Goods Protection Act, 1871, shall, wherever and so far as this Act applies, be repealed as from the commencement of this Act.

definitions.

9. In this Act the words "superior landlord" shall be deemed to include a landlord in cases where the goods seized are not those of an under tenant or lodger; and the words "tenant" and "under tenant" do not include a lodger.

it not to
 extend to
 Scotland.

10. This Act shall not extend to Scotland and shall only apply in Ireland to a rent issuing out of lands or tenements situate wholly within the boundaries of a municipality or of a township having town commissioners.

not title.

11. This Act may be cited as the Law of Distress Amendment Act, 1908.

CHAPTER 54.

An Act to empower the Secretary of State in Council of India to raise money in the United Kingdom for the Construction, Extension, and Equipment of Railways in India by State Agency, or through the Agency of Companies, for the Construction of Irrigation Works; and for other purposes. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

not title.

1. This Act may be cited as the East India Loans Act, 1908.

definition.

2. In this Act the expression "Secretary of State" means the Secretary of State in Council of India, unless the context otherwise requires.

power to raise
 1,000,000/ for
 constructing,
 extending, and
 equipping rail-
 ways in India,
 or construct-
 ing irrigation
 works and for
 other purposes.

3. It shall be lawful for the Secretary of State at any time or times to raise in the United Kingdom as and when necessary, by the creation and issue of capital stock, bonds, debentures, or bills, or partly by one of such modes and partly by another or others, any sum or sums of money not exceeding in the whole twenty millions of pounds sterling, to be applied—

- (1) in the construction, extension, and equipment of railways in India by State agency, or through the agency of a company or companies under engagement with the Secretary of State; or
- (2) in the repayment of the principal of any bonds or debentures issued by any such company under the guarantee of the Secretary of State; or

(3) in the discharge of any obligations incurred or arising by reason of the purchase by the Secretary of State of any railway constructed or worked in India by any such company, or on the determination of the contract of any such company with the Secretary of State ;

(4) in the construction of irrigation works in India.

4. It shall also be lawful for the Secretary of State at any time or times to raise in the United Kingdom, as and when necessary, in the manner mentioned in section three of this Act, any sum or sums of money not exceeding in the whole five millions of pounds sterling for the general purposes of the Government of India.

Power to raise 5,000,000/ for the general purposes of the Government of India

5. The power given to the Secretary of State by this Act to raise moneys by means of stock or other securities created by him shall be deemed to include power to create such stock or other securities to be applied directly in exchange for or discharge of any of the bonds, debentures, or other obligations mentioned in subsections (2) and (3) of section three of this Act, in such manner as may be necessary for carrying out any arrangement made for the purpose :

Power to apply securities created under this Act directly in exchange for or discharge of obligations

Provided that, in calculating the amount of the moneys raised under this Act, the capital value of any obligations exchanged for or discharged by means of stock or other securities created under this section shall be included as if an equivalent amount of money had been raised under this Act.

6. Sections four to twelve inclusive, sections fourteen to seventeen inclusive, and section nineteen of the East India Loan Act, 1893, shall be incorporated with this Act.

Certain provisions of 56 & 57 Vict. c. 70 to apply

7. This Act shall not prejudice or affect any power of raising or borrowing money, or of creating or issuing securities, vested in the Secretary of State at the time of passing thereof.

Saving.

CHAPTER 55.

An Act to regulate the sale of certain Poisonous Substances and to amend the Pharmacy Acts.

[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Schedule A. to the Pharmacy Act, 1868 (which specifies the articles to be deemed poisons within the meaning of that Act), is hereby repealed, and the schedule to this Act shall be substituted therefor.

Amendment 31 & 32 Vict. c. 121 Schedule A.